

25TRCV03462 25TRCV03462

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV03462 Hearing Date: September 1, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – September 1, 2026

Calendar No.

PROCEEDINGS

Ivan

M. Lopez Ventura v. Matt Haydis, et al.

25TRCV03462

1. Ivan M. Lopez Ventura's Motion for Attorneys' Fees

TENTATIVE RULING

Ivan M. Lopez

Ventura's Motion for Attorneys' Fees is granted, in part.

Background

Plaintiff filed the Complaint on October 10, 2025. Plaintiff

alleges the following facts. Plaintiff alleges that a neighboring tenant is causing excessive noise. Plaintiff filed suit against the neighbor and the landlord alleging 14 causes of action.

Defendant Matt Haydis filed a Cross-Complaint alleging that Plaintiff is thwarting Defendants' attempt to sell the property. On February 9, 2026, Defendant's motion to expunge lis pendens was granted.

On April 21, 2026, Cross-Defendant Ivan M. Lopez Ventura's special anti-SLAPP motion to strike was granted.

Motions for Attorneys' Fees

Code Civ. Proc., §

425.16(c)(1) states: "Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5."

"The trial court has "broad authority" to determine the amount of a reasonable attorneys' fees. *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095. "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." *Id.*

"[California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award.]."

"The experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (internal quotation omitted.)

Cross-Defendant moves, pursuant to CCP § 425.16(c), for attorneys' fees and costs as the prevailing parties on his anti-SLAPP motion in the amount of \$31,165.00. Cross-Defendant's motion is based on the grounds that the Court granted Cross-Defendant's special anti-SLAPP motion to strike. Indeed, Cross-Defendant's Special anti-SLAPP

motion to strike was granted. The entire Cross-Complaint was stricken. Further, of course, with a Special anti-SLAPP motion to strike, no leave to amend can be granted. Thus, Cross-Defendant is entitled to attorneys' fees under the lodestar method based on the reasonable amount of time the attorney spent multiplied by a reasonable rate.

Cross-Defendant

presented the declarations of attorneys, Stanislaw Pulle and Anthony Karian, who did not work on this case but merely attested to their belief that the hourly rate charged, and the hours worked by counsel are reasonable. Cross-Defendant's actual counsel Andre L. Verdu also provided a declaration setting forth his qualifications, hourly rate of \$575/hour, and also provided a billing statement. (Decl., Andre L. Verdun, ¶¶ 2-59; Ex. 4.). The latter declaration is the pertinent declaration for purposes of evaluating the reasonableness of the attorneys' fees requested.

The Court finds that, in consideration of their experience and the nature of the work involved, the hourly rate charged by the attorney was reasonable. In reviewing the hours expended, the Court finds that the time expended in preparing the anti-SLAPP motion – 54.2 hours – is excessive and reduces the amount of hours. The motion research preparation time was reduced from 24.2 hours to 12.2 hours. The Reply research time was reduced from 19.2 hours to 9.2 hours. The post-ruling and fee motion time was reduced from 9.0 hours to 6.0 hours. The time to attend the hearing of 1.8 hours was not reduced. In addition, the Court declines to award an additional amount of attorneys' fees for preparing the Reply which counsel freely admits was untimely filed and served.

Thus, Andre L. Verdu is allotted the total number of hours of 29.2 hours at \$575/hour. Therefore, the Court awards attorneys' fees and costs in favor of Cross-Defendant and against Cross-Complainants in the sum of \$16,790.00.

Cross-Defendant is ordered to give notice of this ruling.